



IN THE HIGH COURT OF KARNATAKA, AT DHARWAD

DATED THIS THE 6TH DAY OF NOVEMBER, 2025

**BEFORE
THE HON'BLE MR. JUSTICE ANANT RAMANATH HEGDE**

WRIT PETITION NO.105473 OF 2024 (L-KSRTC)

BETWEEN:

THE DIVISIONAL CONTROLLER, NWKRTC
HUBBALLI DIVISION, HUBBALLI,
3RD FLOOR, CBT, HUBBALLI.

... PETITIONER

(BY SRI. PRASHANT S. HOSMANI, ADVOCATE)

AND:

SHRI SHEKHARGOUDA
S/O VIRAPPANAGOUDA PIDDANAGOUDAR,
AGE. 62 YEARS, OCC. NIL,
R/O. AT POST: YELAVATTI VILLAGE,
TQ. LAXMESHWAR, DIST. GADAG.

... RESPONDENT

(BY SRI. SHASHWATH S. HIEMATH, ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA, PRAYING TO ISSUE A WRIT OF CERTIORARI OR ANY OTHER APPROPRIATE WRIT, ORDER OR DIRECTION QUASHING THE IMPUGNED ORDER DATED 18-04-2024 PASSED BY THE LABOUR COURT HUBBALLI, IN APPLICATION NO.05/2023 PRODUCED AT ANNEXURE-A IN THE INTEREST OF JUSTICE AND EQUITY.

THIS PETITION COMING ON FOR FURTHER HEARING, THIS DAY, ORDER WAS MADE THEREIN AS UNDER:



ORAL ORDER

(PER: THE HON'BLE MR. JUSTICE ANANT RAMANATH HEGDE)

This writ petition is filed assailing the order dated 18.04.2024 in a proceeding under Section 33-C(2) of the Industrial Disputes Act, 1947. The said order is passed pursuant to the award passed by the Labour Court in the proceeding bearing KID No.37/2017.

2. Writ Petition No.146529/2020, is filed assailing the award in KID No.37/2017 referred to above. The said Writ Petition No.146529/2020, is allowed and the award is set-aside.

3. The impugned Order dated 18.04.2024 under Section 33-C(2) of the Industrial Disputes Act, 1947, is pursuant to the award in KID No.37/2017, which is set-aside in terms of the order passed in WP No.146529 of 2020, the order dated 18.04.2024 has to be set-aside.

4. Hence, the following:



ORDER

- (i) Writ Petition is ***allowed***.
- (ii) Impugned order dated 18.04.2024, in Application No.05/2023, on the file of Labour Court, Hubballi is set-aside.
- (iii) The amount in deposit before this Court shall be released in favour of the petitioner.
- (iv) No order as to cost.

**Sd/-
(ANANT RAMANATH HEGDE)
JUDGE**

AM/-
CT:BCK
LIST NO.: 1 SL NO.: 45